

### **FIRST ENDORSEMENT**

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman., Department Advocate's Office, October 1, 2025. Contents noted. Recommend approval of the negotiated plea agreement in PODS No. C-32409 and C-034049 against LT Brian Query, Tax Registry No. 937315. These cases were conferenced on September 25, 2026, before Assistant Deputy Commissioner of Trials Anne Stone, who approved the negotiated penalty of a forfeiture of a Schedule B Command Discipline and a forfeiture of TEN (10) vacation days after LT Brian Query accepted the finding(s) of substantiation of the allegations contained in the Charges and Specifications for PODS No. C-32409 and C-034049. Charges and specifications will be dismissed for plea purposes.

*Andre D. Applewhite*

Andre Applewhite  
Chief Prosecutor  
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO.  
C-032409BOOK & PAGE NO.  
Page 1 of 1

PERSONNEL ORDER NO.

|                          |                            |                      |                |                      |
|--------------------------|----------------------------|----------------------|----------------|----------------------|
| RANK/TITLE<br>LSA        | SURNAME,<br>QUERY          | FIRST<br>BRIAN       | M.I.           | COMMAND<br>182       |
| SHIELD NO.<br>00000      | TAX REGISTRY NO.<br>937315 | SOCIAL SECURITY NO.  | DATE APPOINTED |                      |
| RANK/NAME OF COMPLAINANT |                            |                      |                | COMMAND              |
| DATE OF CHARGES          |                            | DATE TRIAL COMMENCED |                | DATE TRIAL CONCLUDED |
| TRIAL COMMISSIONER       |                            |                      |                |                      |

| SPECIFICATION                                                                                                                                                                                                                                                                                                                                                             | DISPOSITION | RECOMMENDED PENALTY<br>PLEA [X] TRIAL [ ]                                                                                                                                                                                                                                                                                                                                                                                         |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1. Lieutenant Brian QUERY, on or about July 7, 2023, at approximately 2050, while assigned to PSA 7 and on duty, in the vicinity of § 87(2)(b) Bronx County, abused their authority as a member of the New York City Police Department, in that LT Query stopped § 87(2)(b) without sufficient legal authority.                                                           | DISMISSED   | B - COMMAND DISCIPLINE It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated.<br><br>VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.<br><br>Also refer to case #C-034049. |
| 2. Lieutenant Brian QUERY, on or about July 7, 2023, at approximately 2050, while assigned to PSA 7 and on duty, in the vicinity of the PSA7 stationhouse, Bronx County, abused their authority as a member of the New York City Police Department, in that LT Query ordered a subordinate to issue an unlawful summons to § 87(2)(b) without sufficient legal authority. | DISMISSED   |                                                                                                                                                                                                                                                                                                                                                                                                                                   |

  
FIRST DEPUTY COMMISSIONER

10/14/25  
DATE

**POLICE COMMISSIONER'S APPROVAL**☒ Approved☐ Disapproved☐ Other Action (Describe)

  
POLICE COMMISSIONER

10/29/25  
DATE

**DISPOSITION OF CHARGES**

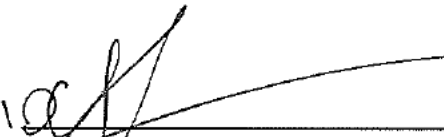
PD 468-142 (Rev. 8-89)-2

CASE NO.  
C-034049BOOK & PAGE NO.  
Page 1 of 1

PERSONNEL ORDER NO.

|                          |                            |                      |                |                      |
|--------------------------|----------------------------|----------------------|----------------|----------------------|
| RANK/TITLE<br>LSA        | SURNAME,<br>QUERY          | FIRST<br>BRIAN       | M.I.           | COMMAND<br>028       |
| SHIELD NO.<br>00000      | TAX REGISTRY NO.<br>937315 | SOCIAL SECURITY NO.  | DATE APPOINTED |                      |
| RANK/NAME OF COMPLAINANT |                            |                      |                | COMMAND              |
| DATE OF CHARGES          |                            | DATE TRIAL COMMENCED |                | DATE TRIAL CONCLUDED |
| TRIAL COMMISSIONER       |                            |                      |                |                      |

| SPECIFICATION                                                                                                                                                                                                                                                                                                                         | DISPOSITION | RECOMMENDED PENALTY<br>PLEA [X] TRIAL [ ]                                                                                                                                                                                                                                                                                                                                                                                         |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1. Lieutenant Brian QUERY, on or about December 2, 2023, at approximately 2110, while assigned to PBMN SU PST and on duty, in the vicinity of § 87(2)(b) Bronx County, abused their authority as a member of the New York City Police Department, in that LT Query arrested § 87(2)(b) unlawfully without sufficient legal authority. | DISMISSED   | B - COMMAND DISCIPLINE It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated.<br><br>VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.<br><br>Also refer to case #C-032409. |

  
FIRST DEPUTY COMMISSIONER

10/14/25  
DATE

**POLICE COMMISSIONER'S APPROVAL**☒ Approved☐ Disapproved☐ Other Action (Describe)

  
POLICE COMMISSIONER

10/29/25  
DATE

**THIRD ENDORSEMENT**

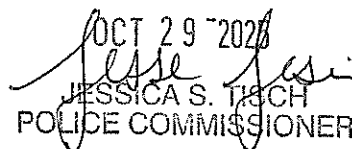
First Deputy Commissioner to Police Commissioner, October 14, 2025. Contents noted. I reviewed the negotiated plea in PODS Case Nos. C-032409 and C-034049 (CCRB Case Nos. 202306300 and 202312024) against Lieutenant Brian Query, Tax No. 937315, with the recommendation that the Charges and Specifications against Lieutenant Query be dismissed and that he receives a Schedule "B" Command Discipline with the forfeiture of ten (10) vacation days. Assistant Deputy Commissioner, Trials Anne E. Stone reviewed this matter and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**



Paula I. Kinsella  
**FIRST DEPUTY COMMISSIONER**

TIK/jpc

**APPROVED**



OCT 29 2025  
JESSICA S. TISCH  
POLICE COMMISSIONER